

University of Arizona, MSIS – ML

INFO 502 - Data Ethics

Should Spreading Anti-Vaccine Misinformation Be Criminalized?

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Introduction

The article “[*Should spreading anti-vaccine misinformation be criminalized?*](#)” by [Melinda Mills](#) and [Jonas Sivelä](#), published in the *British Medical Journal*, raises an important ethical question: Should people who knowingly spread false information about vaccines be punished by law? This question matters because misinformation can harm public health by making people afraid of vaccines, while at the same time, punishing speech can limit freedom of expression. **Melinda Mills** argues that individuals who intentionally share false vaccine claims should, in serious cases, face criminal punishments. She believes this can help prevent harm and protect lives. In contrast, **Jonas Sivelä** warns that criminalizing such speech risks damaging democracy and eroding public trust. He supports alternative approaches like education, transparency, and better public communication. This paper presents both arguments clearly and fairly, evaluates them using ethical reasoning, and concludes with a well-justified personal position.

Melinda Mills’ View

Melinda Mills presents key facts to support her conclusion.

Non-Normative Premises:

1. Vaccine misinformation and disinformation contribute significantly to vaccine hesitancy.
2. This hesitancy, in turn, leads to preventable illness and death (e.g., measles resurgence).
3. Some people spread these false claims deliberately, often for profit or to push an agenda.

Ethical Principle (Implicit):

It is acceptable to limit freedom of expression when such expression causes serious and preventable harm to others, especially in matters of life and death.

If we accept this principle and agree with the facts Mills presents, then her conclusion follows: In some cases, people who spread dangerous lies about vaccines should be punished.

Argument Reconstruction:

Mills implicitly argues that when speech endangers lives, particularly through the intentional spread of falsehoods, it loses moral protection. Her principle, rooted in preventing harm, justifies criminal punishment as a last resort against those who knowingly spread disinformation. When this principle is combined with her factual premises about vaccine hesitancy and malicious intent, it supports the conclusion that criminalization is ethically justified in select cases.

Jonas Sivelä's View

Jonas Sivelä presents a different set of facts to support his approach.

Non-Normative Premises:

1. It's difficult to clearly and consistently define "misinformation" and "disinformation".
2. Criminalizing misinformation risks suppressing legitimate concerns and free expression.
3. Building public trust through education and transparency is more effective and sustainable than punishment.

Ethical Principle (Implicit):

In a democratic society, people should be allowed to speak freely, even if they're wrong, unless they're directly inciting violence. Even wrong or unpopular ideas deserve the right to be heard.

If we accept this principle and recognize the challenges of enforcing speech laws fairly, then Sivelä's conclusion makes sense: Criminalizing vaccine misinformation is not the right solution.

Argument Reconstruction:

Sivelä argues that free speech is a foundational value of democratic societies. Even when people are misinformed, they should be allowed to speak without fear of punishment; otherwise, public trust may decline, and people may feel silenced. His ethical principle emphasizes the importance of open dialogue and highlights the danger of turning ordinary people into criminals for expressing concerns. When this principle is combined with the practical issues involved in defining and regulating misinformation, it supports his view that criminalizing such speech is ethically risky and potentially counterproductive.

Principle Evaluation

Melinda Mills' Principle

Case Supporting the Principle:

A popular health blogger falsely claims that a new herbal supplement cures him from a serious viral illness. Thousands of followers stop seeking medical treatment and rely on the supplement instead. As a result, multiple people are hospitalized, and at least one dies due to delayed treatment. Here, restricting the blogger's speech may be ethically justified to prevent clear and foreseeable harm.

Counterexample:

A science journalist writes an article about rare but serious side effects of a government-approved medication. Though the reporting is accurate and well-sourced, it sparks public fear, and some people avoid the treatment. Under Mills' principle, this factual report might be restricted simply because it leads to harm, raising concerns about suppressing honest medical discussion.

Jonas Sivelä's Principle

Case Supporting the Principle:

A senior employee at a public agency raises concerns about a major data breach, including the potential exposure of personal information of thousands of citizens. While some claims are speculative, the alarm leads to an internal investigation that reveals real vulnerabilities. Protecting this speech allows necessary scrutiny and helps restore public accountability.

Counterexample:

An online influencer spreads false claims that toxic waste is being dumped into public drinking water as part of a secret population control plan. The claim is knowingly fabricated but garners millions of views, causing panic and driving people to avoid tap water and spend money on overpriced alternatives. Sivelä's principle would protect this speech, even though it is knowingly false and causes social harm, which seems morally unacceptable.

My View and Reasoning

Spreading deliberate anti-vaccine disinformation should be criminalized, but only under strict, well-defined conditions. Criminal penalties should apply only when all of the following are true: (1) the speaker acts with **malicious intent**, (2) the speech is **knowingly false**, and (3) the harm caused is **serious, foreseeable, and preventable**.

Non-Normative Premises:

1. Vaccine disinformation has led to real-world harms, including serious illness and death (Wilson & Wiysonge, 2020).
2. Some disinformation is spread deliberately for financial, political, or ideological purposes.
3. Current efforts like education, fact-checking, and platform moderation, while useful, are not always enough and effective at stopping the worst cases.

Ethical Principle:

Freedom of expression may be limited only when the expression is knowingly false, foreseeably harmful, and issued with intent to deceive, especially when the consequences involve preventable death or serious public harm.

Why It Holds Up:

- **Mills' Counterexample Avoided:** Unlike Mills' broader harm-prevention principle, my principle protects well-intentioned, fact-based speech, even if it causes discomfort or fear, such as responsible journalism or honest medical reporting.
- **Sivelä's Counterexample Avoided:** Unlike Sivelä's principle, my principle allows society to intervene in extreme cases where disinformation is weaponized to manipulate or harm the public, such as profit-driven lies or organized conspiracies.

This balanced approach preserves freedom of speech while protecting public health from malicious actors who knowingly exploit misinformation to cause harm.

Supporting Example:

A self-proclaimed financial advisor and social media influencer, not qualified to give financial advice, runs a popular YouTube channel offering stock and cryptocurrency “investment tips.” To gain more views and followers, he knowingly promotes unstable stocks and coins based on random or misleading claims. Though he doesn’t profit directly, his goal is to build a reputation and grow his online influence. Many viewers act on his advice, invest heavily, and suffer significant financial losses. The speech is framed as personal opinion or financial education, but it is knowingly false, made in bad faith, and foreseeably harmful. Under my principle, this kind of disinformation used to boost personal fame at others’ expense should be open to legal accountability.

Beyond Criminalization:

Alongside targeted criminal penalties, social media platforms should take greater responsibility for curbing harmful misinformation. While platforms like X, Meta, and YouTube already use some form of content moderation, these should be improved, standardized, and made more transparent. High-risk content, such as health or financial claims, could be flagged by machine learning for evidence checks, citations, or disclaimers. Platforms might also delay such posts pending review. If later proven to be deliberate hoaxes, responses should be documented publicly. This layered strategy balances free speech with public safety, limiting harm without silencing honest discussion.

Research suggests that transparent, well-targeted moderation, especially when paired with explanations, tagging, or temporary review, can effectively reduce harm without broadly restricting speech (Jhaver, Bruckman, & Gilbert, 2019).

References

1. **Mills, M., & Sivelä, J. (2021, February 17).** *Should spreading anti-vaccine misinformation be criminalized?* *BMJ*, 272. <https://www.bmj.com/content/372/bmj.n272>
2. **Wilson, S. L., & Wiysonge, C. (2020).** *Social media and vaccine hesitancy.* *BMJ Global Health*, 5(10), e004206. <https://gh.bmj.com/content/5/10/e004206>
3. **Jhaver, S., Bruckman, A., & Gilbert, E. (2019).** Does transparency in moderation really matter? User behavior after content removal explanations on Reddit. *Proceedings of the ACM on Human-Computer Interaction*, 3(CSCW), 1–27. <https://doi.org/10.1145/3359252>